

R G Residency Apartment Owners Association v. Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 27 January 2023 · Writ-C No. 2193 of 2023 · **Disposed on statement; licensee to consider consent-time request and pass an order within two weeks.**

HEADNOTE

The Allahabad High Court disposed of an apartment association's writ, which sought to halt multi-point meter installation until 51% resident consent under the UPERC order of 08.05.2020 and the Electricity Supply Code, 2005, on the licensee's statement that respondent no.2 would within two weeks consider in accordance with law the request for time to obtain that consent and pass an appropriate order granting time.

FACTUAL SUMMARY

The R G Residency Apartment Owners Association told the Allahabad High Court that Pashchimanchal Vidyut Vitran Nigam Ltd. was about to change the society's electricity infrastructure to install multi-point meters. Residents, it said, still had to choose by 51 per cent consent under a Commission order of 8 May 2020 and the Electricity Supply Code, 2005, whether to keep the single-point connection or move to multi-point supply. The association also wanted an infrastructural audit and a decision on its 4 January 2023 representation first.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

time to obtain resident consent before multi-point conversion

HOLDING

Counsel for the licensee stated that the association's grievance for time to obtain consent would be considered by respondent no.2 in accordance with law within two weeks, and that an appropriate order for granting time would be passed within two weeks. The writ was disposed of in terms of that statement. No clause of the Electricity Supply Code, 2005 was identified or construed, and the Court did not decide the 51% consent precondition, the demand for an infrastructural audit, or the representation dated 04.01.2023. ¶ 4-5

FLAG Prayer in para 3 invokes the Electricity Supply Code, 2005 and the UPERC order dated 08.05.2020 for 51% resident consent, but the order states no clause number. No clause was inferred.

PRINCIPLE TAGS

procedural-listing-no-construction The writ was disposed on the licensee's statement that the request for time to obtain resident consent would be considered in accordance with law and an order passed within two weeks. The Court adopted no construction of the Supply Code. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CONVERSION TO MULTI-POINT METERING MUST WAIT FOR 51% RESIDENT CONSENT UNDER THE UPERC ORDER DATED 08.05.2020 AND THE ELECTRICITY SUPPLY CODE, 2005.

Respondent no.2 is to consider the request for time and pass an order within two weeks; the Court did not rule on the consent precondition. ¶ 3-5

NOT DECIDED — WHETHER AN ELECTRICITY INFRASTRUCTURAL AUDIT, AND A DECISION ON THE REPRESENTATION DATED 04.01.2023, MUST PRECEDE THE MULTI-POINT PROCESS.

¶ 3-5

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.